

		A financial elder abuse claim lies when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both,” or assists in such conduct. (<i>Munoz v. Patel</i> (2022) 81 Cal.App.5th 761, 782 [citing Welf. & Inst. Code, § 15610.30, subd. (a)(1), (2).]) Plaintiff alleges Powell was an elder at the time she formed the trust. (Compl. ¶ 10.) Plaintiff further alleges the decedent obtained the trust property by orally representing to Powell that he needed money to pay for chemotherapy and targeted radiation, but instead spending it on various luxuries and indulgences for himself and his son. (Compl. ¶¶ 14, 42.) These allegations are sufficient at the pleading stage. The Court OVERRULES Defendant’s demurrer as to the fifth cause of action.
6	25-01471349 <i>Duarte vs. Siegel-Foigelman</i>	Motion to Be Relieved as Counsel of Record
7	24-01403120 <i>Homman Holding, Inc. vs. Epps</i>	Motion to Disqualify Attorney of Record Plaintiff Homman Holding, Inc.’s Motion to Disqualify Defendants’ Counsel of Record is DENIED. Plaintiff moves to disqualify Kutak Rock, LLP as counsel for Defendants in this action. <u>Legal Standard</u> “A court may disqualify an attorney upon “a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information.”” (<i>Havasu Lakeshore Investments, LLC v. Fleming</i> (2013) 217 Cal.App.4th 770, 777.) This authority “derives from the power inherent in every court ‘[t]o control in furtherance of justice, the conduct of its ministerial officers.’” (<i>People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145, quoting Code Civ. Proc., § 128, subd. (a)(5); see <i>City and County of San Francisco v. Cobra Solutions, Inc.</i> (2006) 38 Cal.4th 839, 846; <i>Beachcomber Management Crystal Cove, LLC v. Superior Court</i> (2017) 13 Cal.App.5th 1105, 1116.) “Disqualification motions implicate several important interests, among them are the clients’ right to counsel of their choice, the attorney’s interest in representing a client, the financial burden of replacing a disqualified attorney, and tactical abuse that may underlie the motion.” (<i>Roush v. Seagate Technology, LLC</i> (2007) 150 Cal.App.4th 210, 218-219.) “Although disqualification necessarily impinges on a litigant’s right to counsel of his or her choice, the decision on a disqualification motion ‘involves more than just the interests of the parties.’ [Citation.] When ruling on a disqualification motion, ‘[t]he paramount concern must be to

preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*Clark v. Superior Court* (2011) 196 Cal.App.4th 37, 47-48.) “It must be remembered, however, that disqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety.” (*Roush, supra*, 150 Cal.App.4th at p. 219; see *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 470 [“We do not disqualify a lawyer from representing a client to punish the lawyer’s mistakes or even bad behavior.”].)

Standing

California requires a party bringing a motion to disqualify to have standing. (*Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356.) Standing to bring the motion may be direct standing through a current or past attorney-client relationship or they may establish a “personal stake” in the motion. (*Colyer v. Smith* (C.D.Cal. 1999) 50 F.Supp.2d 966.) A “personal stake” requires “an ethical breach so infects the litigation in which disqualification is sought that it impacts the moving party’s interest in a just and lawful determination of her claims, she may have the constitutional standing needed to bring a motion to disqualify based on a third-party conflict of interest or other ethical violation.” (*Id.* at 971-972.)

Plaintiff has failed to establish standing. Plaintiff only argues it may assert a conflict of interest on AlphaPet, LLC’s behalf as the majority member. However, Plaintiff provides no authority which supports its assertion that being the majority member confers standing. Plaintiff even expressly states “Homman’s current lawsuit is not a derivative lawsuit, but a direct lawsuit brought by Homman.” (TAC, ¶ 83.) Thus, Plaintiff lacks standing to bring a motion to disqualify counsel based on a conflict of interest with AlphaPet. Therefore, the Motion is denied on this ground.

Discovery

Plaintiff provides no legal authority which allows the court to disqualify counsel for alleged discovery obstruction. Plaintiff vaguely argues “the same conflicted firm will prepare the individual defendants for deposition and trial on subjects that implicate Kutak’s own prior representation.” Any disputes regarding discovery may be resolved through the discovery statutes which authorize the Court to impose sanctions for misuse of the discovery process. Those sanctions do not include disqualifying counsel. (See Code Civ. Proc., § 2023.010, *et seq.*) Thus, the Motion is denied on this ground.

Suspended Attorney

Plaintiff provides no legal authority which allows the Court to disqualify a law firm as counsel should one of its members be practicing without an active license. Further, Plaintiff fails to even establish Amir Farahani

		practiced law following his suspension in July 2025. Thus, the Motion is denied on this ground.
8	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion for Attorney Fees Defendant Collectors Universe Inc., also sued in the name of its division, Professional Sports Authenticator aka PSA’s Motion for Attorneys’ Fees is GRANTED in the reduced amount of \$718,701.75. PSA seeks \$1,214,637.00 in attorneys’ fees pursuant to Code of Civil Procedure section 1717, which provides: “In any action on a contract, where the contract specifically provides that attorney’s fees and costs . . . shall be awarded . . . to the prevailing party, then the party who is determined to be the party prevailing on the contract . . . shall be entitled to reasonable attorney’s fees. . . .” “California courts ‘liberally construe ‘on a contract’ to extend to any action ‘[a]s long as an action ‘involves’ a contract and one of the parties would be entitled to recover attorney fees under the contract if that party prevails in its lawsuit” (<i>Mitchell Land & Improvement Co. v. Ristorante Ferrantelli, Inc.</i> (2007) 158 Cal.App.4th 479, 486 [citations omitted].) ““As to tort claims, the question of whether to award attorney[] fees turns on the language of the contractual attorney[] fee provision, i.e., whether the party seeking fees has ‘prevailed’ within the meaning of the provision and whether the type of claim is within the scope of the provision.”” (<i>Yoon v. Cam IX Trust</i> (2021) 60 Cal.App.5th 388, 392 [citation omitted].) “To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action. [Citations.] Any action that is based on a contract is an action on that contract regardless of the relief sought.” (<i>Id.</i> at pp. 392-393 [citations omitted].) On 11/10/25, the Court granted PSA’s Motion for Nonsuit as to Plaintiff’s claims for negligence and under the Consumer Legal Remedies Act (Civ. Code §§ 1750 et seq.). (ROA 565.) PSA’s request for attorney’s fees in the amount of \$1,214,637.00 consists of: (1) \$999,248.00 (Alston & Bird’s work 3/1/25-2/17/26) (2) \$198,589.00 (Attlesey Ward’s work 2/24/21-2/28/25); and (3) \$16,800.00 (Alston & Bird’s anticipated work). Plaintiff’s cause of action for negligence PSA contends Plaintiff’s negligence cause of action was “on a contract” as it involved the PSA Terms and Conditions. PSA further contends the action involved PSA’s defensive positions to enforce the terms of the